Service Level Addendum

This **Addendum** is incorporated in and forms part of the agreement made between **The Corporation of the City of Mississauga** (the "**City**") and [insert name of Supplier] ("**Supplier**") titled IT Supplier Agreement and dated [insert effective date of the master Agreement] (the "**Agreement**").

1. Introduction

1.1 Definitions. Unless otherwise set out in this Addendum, defined terms shall have the meaning set out in the Agreement.

(a) "**Addendum**" means this Service Level Addendum (as amended from time to time in accordance with the amending provision of the Agreement).

(b) "**Agreement**" has the meaning as described in the opening paragraph of this Addendum.

(c) "**Recovery Point Objective**" or "**RPO"** means, if a restore is needed, then the maximum amount of time between the restore of data and the last useable backup that will be used for such restore.

(d) "**Recovery Time Objective**" or "**RTO"** means, if a restore is needed, then the maximum amount of time required to restore the operations, Services, Deliverables or any lost data following a Services Error or an outage.

(e) "**Request**" means a request for technical support relating to the Services and/or Deliverables made to Supplier's help desk by the City by telephone, email or using Supplier's ticketing system.

(f) "**Resolve**", "**Resolved**", "**Resolution**" and correlative capitalized terms mean that, as to any Service Error, Supplier has provided City the corresponding correction to the Service Error, and City has confirmed such correction and its acceptance thereof in writing.

(g) "**Resolution Time"** equals the time it takes for Supplier to Resolve a Request. The time begins when the Request is made. The time ends when the Request is Resolved.

(h) "**Response Time**" equals the time that it takes for Supplier to acknowledge a Request. The time begins when the Request is made. The time ends when the Request is acknowledged when a representative of Supplier contacts the City's representative who made the Request by: (i) speaking with the representative about the Request by phone (including but not limited to doing so by answering their call); (ii) leaving a voice message for the representative at the number provided by the representative when the Request was made; or (iii) sending an email message to the representative at the email address provided by the representative when the Request was made.

(i) "**Service Error**" means any failure of the Services and/or Deliverables to perform in accordance with the Agreement and its specifications and are further classified by the City as Priority 1, Priority 2, Priority 3, and Priority 4 as detailed in Section 2.4 below.

(j) "**Service Level Commitment**" means a metric set out in the Agreement or this Addendum that applies to the Services and/or Deliverables.

1.2 Service Descriptions. The descriptions of Services and Deliverables set out in this Addendum are intended to be read with the more detailed description of the Services and Deliverables set out in the Agreement. In the event of a conflict between these descriptions, the provisions in the Agreement take precedence.

2. Service Level Commitments

2.1 Effort. Supplier will provide the Services and Deliverables so that all Service Level Commitments are met or exceeded. Following the identification of a failure to meet a Service Level Commitment, Supplier

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will use reasonable efforts to: (i) rectify the deficiency; and (ii) prevent the deficiency from recurring.

2.2 Acknowledgement. Supplier acknowledges that the Service Level Commitments represent the minimum acceptable standards for the Services and Deliverables.

2.3 Exception. Supplier is not responsible for failing to meet a Service Level Commitment when that failure results primarily and directly from an error, act or omission of the City. However, Supplier is required to identify, investigate and diagnose any such failure in accordance with Section 2.1 (Effort), and promptly advise the City's contact of the deficiency and the error, act or omission so that it can be addressed by the City or Supplier, as necessary.

2.4 Service Level Commitments. The Service Level Commitments are set out in the following table.

Service Level Commitments			
	Name of Service Level Commitment	*Description of Service Level Commitment*	*Remedy(ies)*
A.	Availability (Averaged)	The Deliverables will be available 99.99% of the time measured monthly. <u>Calculation:</u> "**Availability**" with respect to the Deliverables in any month equals: (the difference between the number of minutes in the month and the minutes of Down Time for the month) divided by the number of minutes in the month and multiplied by 100 Availability = (the number of minutes in the month – Down Time) / the number of minutes in the month X 100 "**Down Time**", with respect to any month, equals the sum of all periods of time during that month when any of the following events are occurring other than as a result of Scheduled Maintenance: (i) the Deliverables cannot be accessed by any User; (ii) the performance of the Deliverables or a feature thereof is materially compromised; or (iii) Users are unable to use the Deliverables to access Customer Data. Down Time is measured in minutes. "**Scheduled Maintenance**" means any maintenance conducted by Supplier: (i) between 10 p.m. and 6 a.m. (local time in Mississauga, Ontario) during any one-off maintenance period lasting less than one (1) hour for which the City been given written notice at least seven (7) calendar days in advance, provided however that the Supplier may request City's approval for Scheduled Maintenance above one hour, which approval may be granted in City's sole discretion. Without limiting any other remedy available to the City under the Agreement or at law, the City shall be entitled to the corresponding remedies if Supplier fails to make the Services and/or Deliverables available in accordance with this cell.	**First Time** – The first time Supplier fails to meet this Service Level Commitment, Supplier will provide to the City a plan setting out the steps that Supplier is taking to prevent its failure to meet this Service Level Commitment in the future **Subsequent Times** – The second time and each subsequent time that Supplier fails to meet this Service Level Commitment, Supplier will: (i) provide the City with a credit equal to 10% of the fees paid by the City pursuant to the Agreement for the applicable month; (ii) Supplier will provide to the City an updated plan setting out the steps that Supplier is taking to prevent its failure to meet this Service Level Commitment in the future; and (iii) review the plan with the City. If Supplier fails to implement any plan described in this cell during a month and fails to meet this Service Level Commitment for that month, the amount of the credit to be applied in that month is increased by a multiplier of 5. If Supplier meets this Service Level Commitment in four (4) consecutive months, the number of failures resets to zero.

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B.	Response Times and Resolution Times	The Response Time and Resolution Time for a Request will vary based on its severity. Severity will be determined by the City based on the nature of the incident to which the Request relates and the following table. Supplier shall Respond to and Resolve all Service Errors within the time stated in the following table. Without limiting any other remedy available to the City under the Agreement or at law, the City shall be entitled to the corresponding remedies if Supplier fails to Respond to or Resolve all Service Errors within the time stated in the following table. **Service Error Priority** / **Description** / **Response Time** / **Resolution Time** Priority 1 – Critical Service Error / The Services and/or Deliverables or a core function of the Services and/or Deliverables are unavailable to all Users or there is a security issue. No reasonable workaround is available. / Fifteen (15) minutes / One (1) hour Priority 2 – High / Urgent Service Error / The Services and/or Deliverables or a core function of the Services and/or Deliverables are degraded and there is a non-trivial negative impact on the City's operations. No reasonable workaround is available. This includes any former Priority 1 Request for which a reasonable workaround has been provided. / One (1) hour / Twenty-four (24) hours Priority 3 – Medium Service Error / The Services and/or Deliverables or a core function of the Services and/or Deliverables are degraded, but the impact on the City is trivial. / Twenty-four (24) hours / Five (5) business days.	**First Time** – The first time Supplier fails to meet this Service Level Commitment, Supplier will provide the City with a credit equal to •10% of the fees paid by the City pursuant to the Agreement for the applicable month. **Second Time** – The second time Supplier fails to meet this Service Level Commitment: (i) Supplier will provide the City with a credit equal to •25% of the fees paid by the City pursuant to the Services for the applicable month; and (ii) Supplier's [insert title of escalation contact] and the City's [insert title of escalation contact] will be notified of the failure. **Subsequent Times** – The third time and each subsequent time that Supplier fails to meet this Service Level Commitment: (i) Supplier will provide the City with a credit equal to •50% of the fees paid by the City pursuant to the Agreement for the applicable month; (ii) Supplier's [insert title of escalation contact] and the City's [insert title of escalation contact] will be notified of the failure; and (iii) on the City's written request, Supplier's [insert title of escalation contact] will meet with the City's [insert title of escalation contact] to review options for how to address the ongoing problem. If Supplier meets this Service Level Commitment in four (4) consecutive months, the number of failures resets to zero. **Two or more Priority 1 Service Errors** - If two or more Priority 1 Service Errors occur in any ninety (90) day period during the Term, Supplier shall promptly investigate the root causes of these Priority 1 Service Errors and provide to City, within five (5) Business Days of its receipt of notice of the second such Support Request, an analysis of such root causes and a proposed written corrective action plan for City's review, comment and approval, which, subject to and upon City's written approval, shall be a part of, and by this reference is incorporated in, this Agreement as the parties' corrective action plan (the "**Corrective Action Plan**"). The Corrective Action Plan shall include, at a minimum: (i) Supplier's commitment to City to devote the appropriate time, skilled personnel, systems support, equipment, and other resources necessary to Resolve and prevent any further occurrences of the Priority 1 Service Errors giving rise to such Support Requests; (ii) a strategy for developing any programming, software updates, fixes, patches, etc. necessary to remedy and prevent any further occurrences of such Priority 1 Service Errors; and (iii) time frames for

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			This includes any former Priority 2 Request for which a reasonable workaround has been provided.			implementing the Corrective Action Plan. There will be no additional charge for Supplier's preparation or implementation of the Corrective Action Plan in the time frames and manner set forth therein.
		Priority 4 – Low Service Error	All other Requests	Seventy-two (72) hours.	Five (5) business days.	
		Exceptions: • Failure of City's internet connectivity; • Network traffic problems other than problems arising in or from networks actually or required to be provided or controlled by Service Provider or its Subcontractor(s); and • Scheduled Maintenance as set forth in Section 2.4 A (Scheduled Maintenance).				
C.	RPO and RTO Business Continuity	RPO of one (1) hour and RTO of four (4) hours.				Supplier will have disaster recovery procedures, as stipulated in the Agreement.
D.	Performance Standards	API Response Time: API calls shall respond in less than 700 milliseconds measured at the 95th percentile via synthetic tests running in Toronto, Montreal, and Vancouver every 5 minutes. Page response time is inclusive of DNS time, connection time, SSL handshake time, and download time. The program browsing site shall load in under 1000 milliseconds measured at the 95th percentile via synthetic tests running in Toronto.				**First Time** – The first time Supplier fails to meet this Service Level Commitment, Supplier will provide to the City a plan setting out the steps that Supplier is taking to prevent its failure to meet this Service Level Commitment in the future **Subsequent Times** – The second time and each subsequent time that Supplier fails to meet this Service Level Commitment, Supplier will provide to the City an updated plan setting out the steps that Supplier is taking to prevent its failure to meet this Service Level Commitment in the future and review the plan with the City.

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3. Support Services

3.1 Technical Support Service Responsibilities. Supplier shall:

(a) provide unlimited telephone and email helpdesk support from 8:30a.m. to 4:30p.m. EST on all Business Days for the purposes of assisting the City as reasonably required by the City to determine the causes of errors or fixing errors in the Services and/or Deliverables;

(b) Provide 24/7 online access to technical support bulletins and other user support information and forums, to the full extent Supplier makes such resources available to its other customers for services similar to that of the City; and

(c) Provide 24/7 online access to Supplier's helpdesk support to which the City can view/add

comments, details and updates on the submitted support requests.

3.2 Service Monitoring and Management. Supplier shall continuously monitor and manage the Services and/or Deliverables to optimize availability that meets or exceeds the availability Service Level Commitment. Such monitoring and management shall include:

(a) proactively monitoring on a 24/7 basis all Service and/or Deliverable's functions, servers, firewall and other components of Services and/or Deliverable security;

(b) if such monitoring identifies, or Supplier otherwise becomes aware of, any circumstance that is reasonably likely to threaten the availability of the Services and/or Deliverables, Supplier shall take all necessary and reasonable remedial measures to promptly eliminate such threat and ensure full Availability; and

(c) if Supplier receives knowledge that the Services and/or Deliverables or component thereof is not available:

(i) if Supplier's investigation of the Services and/or Deliverables outage confirms a Service and/or Deliverable outage in whole or in part: (A) notifying City in writing that an outage has occurred, providing such details as may be available, including a Supplier trouble ticket number, if appropriate, and time of outage; and (B) working on all problems causing and caused by the outage until they are Resolved; and

(ii) notifying City that Supplier has fully corrected the outage and any related problems, along with any pertinent findings or action taken to close the trouble ticket.

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4. Events of Termination

4.1 Suspension of Affected Services. Should any of the following events occur, the City may suspend the affected Services provided under the Agreement without liability, cost or penalty on written notice to Supplier only ending the suspension when the City, acting reasonably, is satisfied that the underlying issues have been resolved:

(a) Supplier fails to meet a Service Level Commitment identified in Section 2.4 (Service Level Commitments) in two (2) consecutive months; or

(b) Supplier fails to meet a Service Level Commitment identified in Section 2.4 (Service Level Commitments) three (3) times or more in any period of 6 consecutive months.

Upon such suspension, Supplier shall refund to the City any fees paid for the suspended services (including the reimbursement of any credits that Supplier has issued to the City under Section 2.4 (Service Level Commitments)) prorated for the duration of the suspension period.

4.2 Termination of Affected Services. Should any of the following events occur, the City may terminate the affected Services provided under the Agreement without liability, cost or penalty on written notice to Supplier:

(a) Supplier fails to meet a Service Level Commitment identified in Section 2.4 (Service Level Commitments) in 4 consecutive months;

(b) Supplier fails to meet a Service Level Commitment identified in Section 2.4 (Service Level Commitments) 5 times or more in any period of 6 consecutive months; or

Upon such termination, Supplier shall refund to the City any prepaid fees for the affected Services (including the reimbursement of any credits that Supplier has issued to the City under Section 2.4 (Service Level Commitments)) on a prorated basis.

4.3 Termination of the Agreement. Should any of the following events occur, the City may terminate

the Agreement:

(a) during any month, Supplier fails to meet three (3) or more Service Level Commitments;

(b) during a period of twelve (12) consecutive months, not a month occurs when all Service Level Commitments have been met; or

(c) during a period of twelve (12) consecutive months, Supplier fails to meet six (6) or more Service Level Commitments.

Upon such termination, Supplier shall refund to the City any prepaid fees (including the reimbursement of any credits that Supplier has issued to the City under Section 2.4 (Service Level Commitments)) on a prorated basis.

5. Other

5.1 Remedies.

(a) The purposes for the remedies set out in this Addendum are to: (i) ensure a prompt and effective response when the Services do not meet the minimum acceptable standards; (ii) reflect the diminished value of the Services to City; and (iii) provide a framework for addressing any recurring problems with the Services. The remedies are not intended to be a penalty.

(b) The remedies described in this Addendum are cumulative and are in addition to and not a replacement for any other remedies available to the City under the Agreement, this addendum or at law. Without limiting the previous sentence, any statement associated with a Service Level Commitment indicating that there is no remedy shall not be interpreted as limiting any rights or remedies that, but for that statement, would be available to the City with respect to any default or breach of the Agreement by Supplier.

(c) The City may waive the right to receive any remedy to which it is entitled under this Addendum. Any such waiver must be in accordance with the waiver provision in the Agreement. A waiver does not constitute a waiver of any other rights or remedies of the City relating to that failure to that Service Level Commitment, and it does not relieve Supplier of its obligation to document and report its performance with respect to all Service Level Commitments.

5.2 Reporting and Monitoring.

(a) Supplier will report performance of Service Level Commitments in accordance with the Agreement.

5.3 Disputes. Any dispute relating to any Service Level Commitment is to be handled through the dispute resolution process set out in the Agreement.

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